

Court No. - 40

Case :- WRIT - C No. - 38315 of 2022

Petitioner :- Shabbir Ahamad

Respondent :- Collector, District Allahabad And 4 Others

Counsel for Petitioner :- Atmaram Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

Heard learned counsel for the petitioner and learned Standing Counsel as well as Sri Narendra Kumar Tiwari, learned counsel for respondent No.4.

On the request of learned Standing counsel a week's time is granted to enable him to seek instructions in the matter.

In view of the averments made in paragraph nos.5, 6 and 7 of the writ petition, wherein the authority itself has made an endorsement "*it is certified that petitioner is not using electricity connection from the date of disconnection*".

Prima facie case is made out for intervention in the matter.

In the view of the above, till the next date of listing no coercive action shall be taken against the petitioner.

Put up this matter on 9.1.2023, as fresh.

Order Date :- 2.1.2023

Dev/-

Court No. - 21

Case :- WRIT - C No. - 38315 of 2022

Petitioner :- Shabbir Ahamad

Respondent :- Collector, District Allahabad And 4 Others

Counsel for Petitioner :- Atmaram Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Dinesh Pathak,J.

The instant petition has been filed for quashing of the notice/recovery certificate dated 25.11.2022 issued by the respondent no. 4. On 02.01.2023 the coordinate Bench of this Court has passed the following order:-

"Heard learned counsel for the petitioner and learned Standing Counsel as well as Sri Narendra Kumar Tiwari, learned counsel for respondent No.4.

On the request of learned Standing counsel a week's time is granted to enable him to seek instructions in the matter.

In view of the averments made in paragraph nos.5, 6 and 7 of the writ petition, wherein the authority itself has made an endorsement "it is certified that petitioner is not using electricity connection from the date of disconnection".

Prima facie case is made out for intervention in the matter.

In the view of the above, till the next date of listing no coercive action shall be taken against the petitioner.

Put up this matter on 9.1.2023, as fresh."

On matter being taken up today, learned counsel Sri N. K. Tiwari appearing for respondent no. 4 states that the recovery was issued by mistake on account of fault in the computer system. He submits that permanent disconnection has already been made and no amount is recoverable from the petitioner. He has produced for our perusal the communication sent in this regard on 07.01.2023 by respondent no. 4 to Additional District Magistrate (Finance and Revenue), Prayagraj praying for dropping the recovery proceeding.

Learned counsel for the petitioner submits that the petitioner is a senior citizen aged about 76 years and has been put to unnecessary harassment.

We find that recovery certificates are being issued by the

respondent electricity department in mechanical manner and in some what similar circumstances in one matter a person was also arrested and sent to civil prison, although the recovery certificate had been withdrawn as it was issued wrongly.

List the instant matter on 18.01.2023 as fresh along with Writ-C No. 37137 of 2022.

The Managing Director, Purvanchal Vidhyut Vitran Nigam Limited shall file his personal affidavit and show cause why this Court may not direct for action being taken against the officers responsible for such causal approach in issuing recovery certificates without verifying from the record whether the amount is due or not.

Until next date, no coercive measure may be taken against the petitioner.

Order Date :- 9.1.2023

Pkb/

Court No. - 21

Case :- WRIT - C No. - 38315 of 2022

Petitioner :- Shabbir Ahamad

Respondent :- Collector, District Allahabad And 4 Others

Counsel for Petitioner :- Atmaram Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Put up tomorrow i.e. on 19.01.2023.

Order Date :- 18.1.2023

Sumit Kumar

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

Case :- WRIT - C No. - 38315 of 2022

Petitioner :- Shabbir Ahamad

Respondent :- Collector, District Allahabad And 4 Others

Counsel for Petitioner :- Atmaram Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The instant petition has been filed praying for quashing of the notice/recovery certificate dated 25.11.2022 issued by respondent No. 4 for recovery of electricity dues from the petitioner.

The case of the petitioner is that his connection was permanently disconnected in 1995 and consequently the recovery certificate is illegal.

Sri N.K. Tiwari, learned counsel for the respondent No. 4, after receiving instructions, made a statement before the Court that the recovery certificate was issued by mistake. We therefore, directed the Managing Director, Purvanchal Vidhut Vitran Nigam Limited to file his personal affidavit and explain how the recovery certificate was issued when no amount was due against the petitioner.

In compliance of the said order, the Managing Director, P.V.V.N.L. has filed his affidavit stating that in a preliminary inquiry held, it transpired that the Executive Engineer of the Division is prima facie guilty of lapses and by OM. No. 177 dated 16.01.2023 an inquiry has been ordered against him. It is also stated that he has issued general direction to all officers to ensure strict compliance of the provisions of the Electricity Supply Code, 2005 and also verify correct facts from the record before issuing any recovery.

Sri N.K. Tiwari, learned counsel appearing on behalf of respondent-Electricity Department states that the recovery certificate has been withdrawn.

Having regard to the aforesaid stand of the respondents we dispose of the petition in terms thereof.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.1.2023//Ruhi